LEGAL GUIDELINE FOR ADVERTISING

Advertising with Novogenia products: blood tests, genetic tests and personalised food supplements. Version 04/2025, English translation of the German original "Rechtliche Leitlinie für Werbung". If the two versions differ, the German original applies.

ADVERTISING WITH NOVOGENIA PRODUCTS

Novogenia works at the forefront of what science can offer. We provide established analytical methods such as blood analyses, as well as advanced options such as genetic analyses and personalised products. Because this is the health sector, strict rules apply to advertising claims. In Germany in particular, associations that issue cease-and-desist warnings ("Abmahnvereine") actively look for unclear or misleading claims and take action against them.

THE EFFECT OF OUR PRODUCTS

We are firmly convinced, and have extensive experience showing, that the recommendations we create are effective and reflect the most advanced state of science. Unfortunately, what a product can do and what may be claimed about it in advertising are not always the same.

HOW A CEASE-AND-DESIST WARNING WORKS

The trigger is always a prohibited or misleading advertising claim. Such proceedings are usually triggered by widely distributed advertising such as TV, magazine placements and social media advertising. To our knowledge, plain websites and sales documents, for example in direct sales, have not yet been the subject of a warning. According to the warning associations themselves, the driving force is usually competitors who want to act against the advertising covertly.

Typically, the association sends a letter stating that certain claims are misleading for customers. It demands the signing of a cease-and-desist declaration, a fee of about EUR 200 and, if the prohibited claim is used again, a contractual penalty of about EUR 5,000. The choice is therefore between court proceedings and signing the declaration.

After signing the declaration, the objected claims may no longer be used. In court proceedings, some claims may be prohibited while others are ruled permissible. The advantage of completed court proceedings is legal certainty regarding the claims used. We expressly point out the risk of litigation costs. The outcome of a dispute depends on the legal opinion of the locally and materially competent court, taking into account previous rulings of other courts.

Across the **4 warnings** we have dealt with in the last **13 years**, the picture is as follows:

- **2 companies** signed the cease-and-desist declaration for the potentially anti-competitive claims, were no longer able to advertise and stopped selling.

- **2 companies** let the association sue them in court. Some, but not all, claims were prohibited; the others were permissible. The companies continued selling without the prohibited claims.

If you receive a cease-and-desist warning, please contact Novogenia immediately. We will try to support and guide you as best we can.

YOUR RESPONSIBILITY

Novogenia can take neither responsibility nor liability for your advertising claims. All advertising and all competition-relevant statements about our products are therefore at your sole entrepreneurial risk.

We are happy to share our experience and opinions with you and to support you in the event of a warning. However, the information we provide can neither guarantee legal certainty nor can we take responsibility for it. This document contains the best practices we have identified.

ADVERTISING WITH BLOOD TESTS

Blood tests are widespread and have long been standard, so there are few restrictions. Permissible advertising claims are based on the following content:

EXAMPLE STATEMENT	CLASSIFICATION
Product description: We test blood.	SAFE
Product description: We diagnose deficiencies.	SAFE
Product description: Comprehensive report.	SAFE
Product description: Physician's findings.	SAFE
Derived results: We give micronutrient recommendations.	SAFE
Derived results: We give nutrition recommendations.	SAFE
Derived results: We personalise food supplements according to the result.	SAFE
Promise of effect: A solution for your symptoms.	SAFE
Testimonial: "I am often tired. The test identified an iron deficiency and helped me."	SAFE
Symptoms of the deficiencies we test for may be named, citing an official source, e.g. "*The German Medical Association names fatigue as one of the symptoms of iron deficiency."	SAFE
Testimonial: "Taking the sample was really easy, the report is easy to understand and I have recommended it."	SAFE

ADVERTISING WITH GENETIC TESTS

Genetic tests are a new possibility and, unfortunately, still far from standard in every medical practice. Warning associations frequently focus on this fact: as a matter of principle, they criticise technologies that are not considered useful by more than 50 % of experts and physicians, i.e. the majority. This is an entry barrier for every new technology that has to be dealt with. Warning associations therefore pay particular attention to DNA analysis programmes.

From the point of view of warning associations, DNA analyses usually consist of 2 components:

- **Typically unchallenged** – the analysis of the genetic properties: analysing the genetic results and comparing them with current science, and determining the genetic properties.
- **Typically challenged** – the programme of action based on it: nutrition plans, exercise plans and micronutrient recommendations based on the genes.

So the analysis and the genetic properties are not the point of criticism; the recommendations derived from them are. On closer inspection this may seem absurd, but it plays out as follows:

EXAMPLE	CLASSIFICATION
Genetic test shows: folic acid is ineffective for you. Warning association: permissible, studies prove this.	SAFE
Our recommendation: do not take folic acid but its effective form, methylfolate. Warning association: where is the study proving that this recommendation works?	CRITICAL
Genetic test shows: you gain weight from fat calories, but not from carbohydrate calories. Warning association: permissible, studies prove this.	SAFE
Our recommendation: eat more carbohydrates and less fat to lose weight. Warning association: where is the study proving that this recommendation works?	CRITICAL

In principle, the warning association is right. Few scientists, whose careers depend on their research, invest their time and energy in this kind of research. Although it is entirely logical that this course of action leads to success, the missing science can be criticised.

It is therefore important to understand our programmes in the right context. The scientific part of the analysis is the evaluation of the genes and the determination of the genetic properties. The logical-conclusion part consists of the recommendations for action we derive from them. These are logically derived, but they do not have the same scientific basis as the first part. It is important that you understand this fact and that you communicate it in exactly this way in your advertising.

THE SAFE OPTION

ADVERTISING WITH GENETIC PROPERTIES

The safe option of advertising focuses only on statements limited to the genetic properties. Examples of uncritical statements:

EXAMPLE STATEMENT	CLASSIFICATION
We analyse your genes and determine whether you gain weight from fats or rather from carbohydrates.	SAFE
You find out whether, based on your genes, you respond better to exercise or to calorie reduction.	SAFE
You learn whether your body can activate folic acid so that it has an effect.	SAFE
You learn which talents your body has for competitive sport and how well your muscles respond to strength training.	SAFE

This restriction is important, but not necessarily a hindrance if communication is clear. The statement "find out whether you gain weight from fat calories" is almost as convincing as "find out whether you gain weight from fat calories and then be told to eat less fat".

THE BOLDER OPTION

CLEAR COMMUNICATION ABOUT HOW SCIENTIFIC EACH ELEMENT IS

In this option, the genetic test itself is advertised as above. Recommendations for action are clearly advertised as logical conclusions and not as scientifically confirmed. Note: warning associations view disclaimers critically and do not always accept them. Examples:

EXAMPLE STATEMENT	CLASSIFICATION
We analyse your genes and use current science to determine whether you gain weight from fats or rather from carbohydrates. Based on this, we draw logical conclusions and create nutrition plans to use these insights.*	WITH DISCLAIMER
You find out whether, based on your genes, you respond better to exercise or to calorie reduction. Based on this, we draw logical conclusions and create training plans to use these insights.*	WITH DISCLAIMER
You learn whether your body can activate folic acid so that it has an effect. Based on this, we recommend alternative micronutrients that you should take instead.*	WITH DISCLAIMER
You learn which talents your body has for competitive sport and how well your muscles respond to strength training. Based on this, we create an adapted training plan to use these insights.*	WITH DISCLAIMER

* INFORMATION ON THE SCIENCE (DISCLAIMER)

That genes affect body weight, the effectiveness of certain weight-loss strategies and the ability to handle certain nutrients is proven for each gene by several scientific studies. The genetic properties determined by this analysis are therefore considered scientifically confirmed.

Adjustments of micronutrient dosage or nutrition recommendations derived from these scientific findings require the so-called gold standard for unambiguous scientific proof: randomised, placebo-controlled studies. These already exist for folic acid and vitamin B2, but have not yet been published for all genetic effects in this programme. For this reason, the genetic adjustment of micronutrient dosage and the food ratings are to be understood as an experimental stage. Your optional food supplements are therefore adapted scientifically to your lifestyle and your blood values and, additionally, experimentally to your genes, depending on the analyses you choose.

STRUCTURE OF ADVERTISING CONTENT FOR GENETIC TESTS

Based on this information, advertising content is structured as follows:

PRODUCT DESCRIPTION

- We test DNA.
- We compare results with the current state of science.
- Insights into the role your genes play in: what makes you gain weight; which vitamins may be ineffective for you; whether you have genes that are more successful in certain sports; whether you have genes that influence your skin.
- A comprehensive report that explains your results.

DERIVED RESULTS AND PROMISES OF EFFECT	CLASSIFICATION
We give food supplement recommendations.	CRITICAL
We give nutrition recommendations.	CRITICAL
We personalise food supplements according to the result.	CRITICAL
We will then help you lose weight.	CRITICAL
You receive a nutrition plan based on your genes.	CRITICAL
We personalise food supplements according to your genes.	CRITICAL

ADVERTISING CLAIMS	CLASSIFICATION
Genes influence your body.	SAFE
Genes influence / play a role in the effect of dietary fat on your body weight.	SAFE
This study says the following about your gene type.	SAFE
Your genes contribute to these properties.	SAFE
We test your genes and show you how they influence you (based on study X).	SAFE
You receive a report of X pages that explains how your genes influence you.	SAFE
Testimonial: "I gain weight easily; someone else eats the same as I do and does not gain weight. The genetic test told me why."	SAFE
Testimonial: "I wanted to know whether folic acid might not work for me because of my genes."	SAFE
Testimonial: "I wanted to know whether my genes have given me more muscle fibres suited to endurance or strength sports."	SAFE

ADVERTISING WITH PERSONALISED FOOD SUPPLEMENTS

The European Union has created a clear legal framework for the claims that may be made about the effects of food supplements, which is helpful for us. The so-called health claims define exactly which effects may be advertised for each active ingredient. A list of the health claims for the active ingredients can be found in the reports.

This also means that, **no matter how much science is behind an effect**, it may not be promoted in advertising until the health claim has been approved by the EFSA. Therefore limit yourself to the extensive list of permitted claims.

Other regulations may apply in other territories; they are not covered in this document.

PERSONALISATION

Personalisation based on lifestyle or blood values is generally unproblematic. It only becomes critical with personalisation based on genetic analysis, for the reasons described above. There are therefore two options:

SAFE OPTION	CLASSIFICATION
We personalise according to your lifestyle and your diet.	SAFE
We personalise according to your blood values.	SAFE

BOLDER OPTION	CLASSIFICATION
We personalise according to your lifestyle and your diet.	SAFE
We personalise according to your blood values.	SAFE
We personalise experimentally according to your genetic analysis.* (Disclaimer required, see "Information on the science".)	WITH DISCLAIMER

PRODUCT DESCRIPTION

- X vitamins, packed in convenient daily sachets.
- Optimised absorption through good raw materials and pellet format.
- Personalised according to blood: scientific laboratory results lead to the personalisation.
- Personalised according to diet and lifestyle: a questionnaire leads to the personalisation.
- Experimental stage: studies indicate that genes can influence the effect of nutrients; not yet confirmed by gold-standard studies.

PROMISES OF EFFECT

- See health claims.

CUSTOMER STATISTICS

- X % would recommend it.
- X % have reordered.
- Are satisfied.

TESTIMONIALS – USED DELIBERATELY

TESTIMONIAL AND BASIS	CLASSIFICATION
"I take it because I have dry skin." Basis: health claim "contributes to the maintenance of normal skin" (must be the effect of a zinc deficiency, recognised source such as EFSA or a medical association).	SAFE
"I had a deficiency, it was identified, and thanks to NovoDaily everything is back in the normal range."	SAFE
"I am satisfied and have recommended it."	SAFE
"I want to strengthen my immune system." Basis: health claim "contributes to the normal function of the immune system".	SAFE

HANDLING CUSTOMER REVIEWS

If you run a customer review system, for example on your website, you have no control over whether a customer makes impermissible statements (e.g. "Product X cured me"). This is permissible in principle but must be handled with particular care.

IF YOU HAVE YOUR OWN SYSTEM THAT YOU CAN MODERATE

Reference: frag-einen-anwalt.de, "Health Claims in Artikelbewertungen" (https://www.frag-einen-anwalt.de/Health-Claims-in-Artikelbewertungen--f338946.html).

- **Clear notice** – state clearly that these are customer opinions and that you do not adopt them as your own.
- **Delete violations** – statements that violate the Health Claims Regulation (impermissible promises of effect) should be deleted.
- **Correct** – if a review is severely wrong, add a correcting response from the company.

IF YOU HAVE AN EXTERNAL SYSTEM THAT YOU CANNOT MODERATE

- **Clear notice** – make clear that these are customer opinions and that you do not endorse them.
- **No highlighting** – false statements must not be deliberately filtered to the top or highlighted.
- **Correct** – if a review is severely wrong, add a correcting response from the company where possible.